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Cobalt Finch Capacity-Offer Emails

Admitted October 8, 2025

United States District Court for the Western District of North Carolina Blue Ember Biologics, LLC v. Granite Heron Logistics, Inc. Civil Action No. SYN-WDNC-24-CV-0520

The parties jointly offered this authenticated communication chain concerning replacement capacity at Cobalt Finch Bioprocessing, 720 Meridian Commons Drive in Durham, North Carolina. The chain begins with a written proposal sent October 2, 2024 and ends after Blue Ember's response on October 4.

Cobalt Finch placed a genuine temporary hold on a suite opening for a BE-214 campaign beginning December 2. Acceptance was required by 17:00 Eastern Daylight Time on October 4 because another sponsor sought the same capacity and technical-transfer work needed to start promptly. The proposal contained conditions; it did not state that Cobalt Finch was already qualified for BE-214.

The correspondence is admitted to show the opportunity, questions, timing, cost estimate, and information available when Blue Ember chose. It does not prove that an accelerated campaign would succeed, that declining was unreasonable, or that 1.8 million dollars would certainly be avoided. Cobalt Finch was not directed by Granite Heron during the offer window.

October 2 proposal

From: Dr. Nia Calder, Director of Technical Operations To: Blue Ember replacement-capacity team Sent: October 2, 2024, 09:18 Eastern Daylight Time

Cobalt Finch confirms that its Durham development suite can be held for a campaign start on December 2, subject to timely commercial acceptance and completion of the attached readiness path. Based on the high-level process description, the facility has a suitable scale range, single-use capability, frozen receiving and storage, analytical options, and staff availability. No facial incompatibility has been identified in the preliminary fit review.

The proposed path includes an October 7 kickoff, focused gap work, an expedited site assessment, document and method transfer, training, engineering confirmation, and a joint readiness decision. Program-specific quality approval remains with Blue Ember. A critical unresolved gap could defer or cancel the campaign.

The working estimate for incremental transfer, focused qualification, and accelerated readiness is 300,000 dollars, subject to confirmed scope. The hold expires at 17:00 on October 4. Acceptance reserves the suite and authorizes staged preliminary spend; costs already incurred and reserved capacity may be chargeable if later readiness work stops the project.

Blue Ember's October 3 questions

From: Blue Ember technical and quality review team To: Dr. Nia Calder Sent: October 3, 2024, 10:42 Eastern Daylight Time

Blue Ember appreciates confirmation that the December opening is real. Before committing, the team requests the detailed equipment-equivalence matrix, proposed analytical allocation, audit materials, training approach, batch-record adaptation sequence, material lead times, cancellation schedule, and the decision standard for the final readiness gate. Please identify which items can be resolved before the hold expires and which require acceptance.

The team also asks whether selected release methods must move to Durham, whether an approved external laboratory may remain responsible, and how a failed engineering confirmation affects the slot. The proposal's 300,000-dollar estimate should be separated from ordinary replacement manufacturing charges and should identify contingency assumptions.

Blue Ember explains that Aurora Quay offers a later established route beginning March 3, 2025. An earlier campaign has material schedule value, but the sponsor must understand whether compressed transfer could consume scarce staff and still leave the later campaign necessary. The questions do not reject Cobalt Finch's general capability; they seek program-specific readiness information.

Cobalt Finch's October 4 response

From: Dr. Nia Calder To: Blue Ember technical and quality review team Sent: October 4, 2024, 08:26 Eastern Daylight Time

Cobalt Finch can provide its controlled facility overview and preliminary fit matrix now. Detailed batch mapping and method decisions require Blue Ember's controlled documents after acceptance. A focused on-site assessment is proposed for October 14 and 15, followed by overlapping transfer work and an engineering confirmation during November 11–15. The joint readiness decision is targeted for November 22.

The 300,000-dollar estimate represents incremental transfer management, qualification, adaptation, selected method work, training, engineering confirmation, and expedited-capacity premium. It is not the entire replacement-manufacturing invoice and is not a guaranteed maximum if a major unknown gap appears. Payment and cancellation exposure accrue by stage rather than becoming fully nonrefundable immediately.

Cobalt Finch believes the schedule is feasible with prompt cooperation but does not guarantee manufacturing success, final disposition, or any amount of avoided economic loss. A brief extension may be considered only if the competing sponsor has not committed. The suite hold otherwise ends at 17:00 today.

Blue Ember's decision

From: Dr. Mira Solis To: Dr. Nia Calder Sent: October 4, 2024, 15:54 Eastern Daylight Time

Thank you for the prompt and substantive responses. Blue Ember recognizes Cobalt Finch's relevant capability and the value of the held December slot. After review by operations, technical, quality, and finance personnel, Blue Ember will not commit before the deadline. Program-specific equipment comparison, analytical responsibility, document alignment, quality-system review, material timing, and execution confidence remain unresolved.

The decision does not assert that Cobalt Finch could never qualify. Blue Ember has chosen to retain the established Aurora Quay path rather than divide limited personnel and risk an expedited transfer that might fail after staged expenditure. Please release the hold at 17:00 and keep the company informed of any later comparable opening.

Calder acknowledged receipt at 16:11 and stated that the slot would become available to the waiting sponsor. No message offered a cost-free indefinite extension, guaranteed a successful lot, or promised reimbursement if readiness failed. The chain ends before the deadline and contains no communication from Granite Heron directing Blue Ember's choice.

Custodian stipulation and context

Blue Ember and Cobalt Finch custodians confirmed sender, recipient, timestamp, attachment relationship, and preservation of the original communication chain. Another fictional sponsor booked the suite after the hold expired. That later booking corroborates actual capacity but does not establish how BE-214 would have performed there.

The email chain must be read with the separate qualification file and Dr. Calder's testimony. General capability, a held opening, unfinished transfer, elevated schedule risk, and absence of a guarantee are all part of the same contemporaneous record. Neither side may excerpt "feasible" while hiding conditions or excerpt "unresolved" while pretending the option was fictitious.

The exhibit supplies evidence for the affirmative mitigation dispute. Granite Heron contends a reasonable sponsor would have reserved the earlier course; Blue Ember contends its documented caution was reasonable. The simple fact of admission resolves neither position and does not modify the historical shipment breach, original lot disposition, or later Rule 50 motion record.